

TEXAS LEGAL & REGULATORY

Texas Data Breach Notification Procedure (Bus. & Com. Code Sec. 521.053)

The clock-driven procedure for Texas breach duties: who must be told, by when, and with what content - integrated with the Incident Response Plan.

Document ID	BVT-TXL-208
Version	1.0
Effective date	July 28, 2026
Document owner	Jordan Polasek, Managing Partner
Classification	Internal - BVTech LLC Confidential
Review cycle	Annual, or upon material change
Counsel review	Recommended by licensed Texas counsel before first execution

Legal Duties

- Notify affected Texas residents without unreasonable delay and no later than 60 days after determining a breach of system security occurred involving sensitive personal information.
- If 250 or more Texas residents are affected, notify the Texas Attorney General no later than 30 days after determination - via the AG's electronic form - including the nature of the breach, number of residents notified, safeguard measures, and law-enforcement engagement.
- Consumer reporting agencies must be notified when more than 10,000 persons are notified.
- Notification may be delayed at the documented request of law enforcement.
- Other regimes may run in parallel and faster: HIPAA breach rules, IRS preparer duties, contractual client commitments, and cyber-insurance conditions.

Procedure

1. Determination & clock start

The incident commander documents the date the breach was 'determined' - both notification clocks run from that date. Preserve the determination memo.

2. Scope the affected population

Identify affected individuals and their states of residence; Texas counts drive AG and CRA duties, other states trigger their own statutes.

3. Engage counsel and carrier

Before external notices go out, engage breach counsel and the cyber-insurance carrier - most policies require carrier consent to notification costs.

4. Draft and deliver notices

Use the content requirements of Sec. 521.053(b); deliver by written or permitted electronic notice; substitute notice only when statutory thresholds are met.

5. File the AG notification

At 250+ Texas residents, submit the AG's form within 30 days; keep the submission receipt in the incident record.

6. Close the record

File all notices, dates, counts, and decisions in the incident record; feed lessons into the POA&M.